

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: September 16, 2026

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#	Case Name	Tentative
1.	2025-1526862 Snutec, Inc. vs. Red Hill Village, LLC	The Court grants Defendants Red Hill Village LLC, JBW Partners LLC, and Bodhi Metta LLC's Motion to vacate the January 7, 2026 defaults and the May 29, 2026, Judgment entered against them. Defendants are ordered to file their proposed Answer within 15 days. <u>RJN</u> Plaintiff requests judicial notice of a proof of service and a request for entry of default previously filed in this action. These requests are denied as unnecessary. "It is not necessary to ask the court to take judicial notice of materials previously filed in the case; you should simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9.53.1a.) <u>Merits</u> The Court may grant discretionary relief from default based on mistake, inadvertence, surprise, or excusable neglect. The moving party must present specific facts establishing a statutory ground for

relief. (Code Civ. Proc., § 473, subd. (b); *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.)

Here, the Motion is timely filed relative to the defaults and Judgment. The proposed answer is attached to the Isaacs declaration.

First, Defendants argue, without presenting any admissible evidence, that “Bonaparte Liu has no recollection of being served with the Summons and Complaint and therefore dispute the validity of the default on that basis alone.” (Memo of Points and Authorities, Statement of Relevant Facts ¶5.)

But there is no citation to any evidence. In law and motion practice, counsel will frequently prepare a summary of facts in support of or in opposition to the motion. This may be part of a memorandum of points and authorities or consist of a separate statement of facts. Such a practice is useful as long as each fact mentioned is supported by admissible evidence and preferably if each such factual allegation is followed by an *appropriate reference to the evidence accompanying the motion or opposition*. (*Smith, Smith & Kring v. Superior Court (Oliver)* (1997) 60 Cal.App.4th 573, 577–578.) Absent such support in the evidence submitted, the court must disregard “facts” contained in an unverified statement. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

Further, all three Defendants were served with the Summons and Complaint on November 25, 2025; the person served was “Bonaparte Liu,” the agent for service of process. But he was served via “Jane Doe,” a female accountant by substitute service. (ROA 11, 13, 15.) The “accountant” was served at the principal address of all three entities and the address identified for the agent for service of process – 4340 Von Karman Ave, Suite 390 Newport Beach, CA 92660. There is no declaration from her or Liu.

Second, Defendants argue that they made a mistake in not notifying their attorney. The only declaration provided in the Moving Papers is from Defense Counsel. Defense Counsel testifies that “I first learned of the default and default judgment in this action on or about May 4, 2026, when Mr. Bonaparte Liu contacted me.” (Isaacs Decl., ¶5.) It is not clear when the documents were given to Liu, but the Court does have evidence that he did not notify his counsel until after the defaults were entered.

Prior to the filing of this action, the parties were engaged in two separate litigation matters, Case No. 30-2023-01310690-CU-BT-CJC (the “Lease Dispute”) and 30-2024-01444990-CU-UD-CJC (the “UD Action”) both pending in the Superior Court of California,

County of Orange (the Lease Dispute and UD Action may be referred to collectively as the “Related Actions”). In both the Related Actions, Defendants were represented by Jackson W. Isaacs of Kimball, Tirey & St. John, LLP. The Related Actions were both resolved in a settlement between the Parties. (Isaacs Decl. ¶¶ 1, 3.) The alleged breaches of that settlement agreement are the central issue in this action by Snutec, Inc. Plaintiff filed the Complaint in this action on or about November 17, 2025. Despite knowing that Defendants were represented by counsel, Plaintiff’s counsel made no effort to notify Mr. Isaacs of the filing of this action, the service of process, or the intent to seek default. (Isaacs Decl. ¶ 4.)

There exists an ethical obligation to warn opposing counsel of an intent to take a default (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 701–702), which is reinforced by a statutory policy that all parties “cooperate in bringing the action to trial or other disposition” (CCP § 583.130; *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137 [“Quiet speed and unreasonable deadlines do not qualify as cooperation and cannot be accepted by the courts.”]; *Shapell Socal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 203–204, 213–214 [obligation to advise opposing counsel of an impending default is part of an attorney’s responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively].)

An attorney who knows the identity of opposing counsel must warn counsel before seeking entry of default and provide a reasonable opportunity to respond. Failure to give that warning is relevant to a request for relief, but does not alone establish entitlement to relief under section 473(b). The Court must also consider the circumstances causing the default, the moving party’s diligence, and any prejudice from setting the default aside. (*Shapell Socal Rental Properties, LLC*, supra, 85 Cal.App.5th at pp. 213–215.)

In short, if counsel has had any contact with the attorney representing a defendant, counsel should not attempt to get a default entered without first giving defendant’s counsel written notice, and a follow-up phone call as well, regarding intent to request entry of default, and a reasonable time within which defendant’s pleading must be filed to prevent such default.

In opposition, Plaintiff’s Counsel John Gulino testifies that Mr. Isaacs knew from a hearing in the underlying case that this lawsuit would be filed. (Gulino Decl., ¶5.) Plaintiff’s Counsel also testifies that Mr. Isaacs never offered to accept service of this lawsuit (before it was filed). (Gulino Decl., ¶7.) Also, after defaults were entered, Mr. Isaacs left a voicemail that stated he just learned about this case and that apparently a default had been entered. He continues

		“I wasn’t aware I wasn’t involved in that case.” (Gulino Decl., ¶¶13-14.) But that is consistent with Mr. Isaacs’s declaration – he learned of this case after default had been entered and called to ask for a stipulation to set it aside. Mr. Isaacs, who represented Defendants in the underlying actions, was not asked to accept service, was not informed of this lawsuit after it was filed, and was not warned prior to entry of default. Plaintiff requests compensation for attorney’s fees incurred because of defendants’ failure to appear. The Court finds \$2,000 in such fees reasonable and imposes that amount as just terms of discretionary relief under Code of Civil Procedure section 473(b). Defendants shall pay \$2,000 to plaintiff’s counsel, Gulino Law Office, within 30 days. Defendants shall serve notice of this ruling.
2.	2026-1562665 adQUADRANT , Inc. vs. Bett Botanicals Inc.	The Demurrer brought by Defendant Bett Botanicals, Inc. is overruled in its entirety. The complaint alleges a direct contractual relationship between plaintiff and Bett Botanicals, Inc. (Complaint, ¶ 6 & ex. A.) It therefore does not depend on alter-ego liability to state a claim against this defendant. Any deficiency in the alter-ego allegations does not defeat the direct contract claim. (Code Civ. Proc., § 430.10, subd. (e).) Defendant next argues that plaintiff’s allegation of contractual performance is conclusory. (Demurrer, p. 6, lines 4-7.) However, performance may be alleged in general terms. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1389.) “It is sufficient for a plaintiff to simply allege that he has ‘duly performed all the conditions on his part.’” (<i>Ibid.</i>; see also Code Civ. Proc., § 457.) Based on the above, Plaintiff’s allegation that it “performed all obligations required of it under the Agreement, except for those obligations that were waived or excused by the conduct of Bett and/or Does 1-10, inclusive” (Complaint, ¶15) is sufficient. Thereafter, Defendant challenges Plaintiff’s interpretation of the Agreement and, specifically, whether the Agreement provides a “minimum contract price.” As noted by the parties and alleged in the Complaint, the Agreement allows either party to terminate the agreement “without

cause upon providing thirty (30) days prior written notice.” (Complaint at ¶6 of Complaint and Exhibit A thereto, at §3.3; see also Complaint at ¶7.)

Relevant to the dispute herein, the Agreement proceeds to state: “Termination of this agreement does not relieve either party of...any minimum contract price specified in the Insertion Order(s) less any amount previously billed and paid by Advertiser...” (Complaint, ¶6 and Exhibit A thereto, at §3.3.)

Drawing from the above language, Defendant argues that Plaintiff “does not plead any specific ‘minimum contract price’ term beyond reciting the monthly fee amounts” and “fails to identify any clause stating that, upon termination, Bett Botanicals must pay all remaining months as liquidated minimums, rather than just amounts earned or accrued.” (Demurrer: 5:19-22.)

The above argument was anticipated, as the Complaint alleges as follows: “Bett apparently contended that there is no minimum contract price specified in the agreement. This argument is baseless given the agreement and addendum clearly provide a minimum of: (1) \$7,500 a month for TikTok Shop Store Management, Affiliate Recruitment and Strategy, and TikTok Shop Ads Management; (2) \$4,000 a month for Shoppable Content; and (3) \$15,000 a month for Google and Meta, for the entire agreed-upon term through August 17, 2026.” (Complaint, at ¶11.)

Liberally interpreting the above allegation, as the Court must, the above alleges a “minimum contract price.” (See Code Civ. Proc., § 452.)

While Defendant clearly takes the position that the above allegation is contrary to the terms of the Agreement, no clearly contradictory language has been identified by Defendant. At best, Defendant has identified an ambiguity in the Agreement, as no reference to a “minimum contract price” could be located, beyond the language quoted above from §3.3.

The termination provision refers to the “minimum contract price specified in the Insertion Order.” It is unclear whether that reference identifies the agreement attached to the complaint or a separate document. (Complaint, ¶ 6 & ex. A, § 3.3.)

“[W]here an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement.” (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239.) “So long as the pleading does not place a clearly erroneous construction upon the provisions of the

		contract, in passing upon the sufficiency of the complaint, [the Court] must accept as correct plaintiff's allegations as to the meaning of the agreement." (<i>Ibid.</i>) "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible." (<i>Aragon-Haas v. Family Security Ins. Services, Inc.</i>, supra, 231 Cal.App.3d at 239.) The agreement is reasonably susceptible to plaintiff's pleaded interpretation that the attached agreement constitutes the referenced Insertion Order and that the specified fees for the agreed term establish the minimum contract price. That interpretation must be accepted at the pleading stage. This ground for demurrer therefore fails. Lastly, Defendant asserts that Plaintiff has not alleged how the minimum contract price is calculated, "which specific invoices remain unpaid, when the invoice(s) became due, or how the 'remaining owed' column is calculated." (Demurrer: 6:8-11.) However, the Complaint clearly alleges that \$191,306.45 is owed under the Agreement. (§10 of Complaint.) Moreover, the Complaint attaches a "Statement of Account," which includes Plaintiff's calculations of the amount owed. (§10 of Complaint and Exhibit C thereto.) Defendant cites no authority which requires any greater specificity in pleading and, consequently, the demurrer is overruled in its entirety.
3.	2025-1521814 Nguyen vs. Nguyen	<i>On the Court's own motion, Demurrer to Amended Complaint is continued to 09/30/2026.</i>
4.	2026-1569037 Santiago vs. Fernandez Viramontes	Defendants Noe Fernandez Viramontes and Florisa Fernandez's motion to strike is denied. Counsel exchanged emails before the motion was filed but did not confer in person, by telephone, or by video conference as required by Code of Civil Procedure section 435.5, subdivision (a). An insufficient meet-and-confer process is not a ground for granting or denying the motion. The Court therefore reaches the merits. (Code Civ. Proc., § 435.5, subd. (a)(4).) A motion to strike may challenge a request for punitive damages unsupported by the pleading. The Court considers the complaint as a whole, assumes the truth of properly pleaded facts, and reads the

allegations in context. Plaintiffs must allege facts supporting punitive damages; merely characterizing conduct as malicious, oppressive, or despicable is insufficient. (Code Civ. Proc., §§ 436–437; *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.)

Civil Code section 3294 permits punitive damages upon proof of malice, oppression, or fraud. Where, as here, plaintiffs do not allege an intent to injure, malice requires despicable conduct undertaken with willful and conscious disregard for others' rights or safety. The defendant must be aware of the probable dangerous consequences and deliberately fail to avoid them. A showing that the defendant merely should have known of the danger is insufficient. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895–896.) Despicability is an additional substantive requirement; negligence, even gross negligence, or recklessness alone does not suffice. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211–1213.)

Although plaintiffs ultimately must establish malice by clear and convincing evidence, this motion tests the sufficiency of their allegations rather than the strength of their proof.

The complaint alleges that Viramontes knew he had consumed alcohol to the point of intoxication and nevertheless voluntarily drove on Ball Road through a heavily residential corridor at night. It further alleges that he disregarded a red traffic signal, made no attempt to brake or evade, and struck plaintiffs' stationary vehicle with sufficient force to displace it more than 25 feet into the intersection. At the time, he allegedly intended to continue driving while intoxicated on the SR-57 Freeway toward Corona. (Complaint, p. 6, ¶ EX-2.)

Read together, these allegations sufficiently support an inference of malice. Plaintiffs identify the driver's alleged knowledge of his intoxication, his deliberate decision to drive despite that condition, the circumstances and manner of his driving, and his intention to continue the trip. These allegations permit an inference that Viramontes consciously undertook driving he knew presented probable dangerous consequences to other road users. His alleged decision to proceed despite known intoxication, considered with the residential setting and the manner of approaching and striking plaintiffs' stopped vehicle, also supports an inference of despicable conduct. The Court's conclusion rests on those allegations collectively.

Defendants emphasize the absence of prior DUI convictions, prior intoxication-related accidents, or probationary restrictions. Those circumstances may strengthen a punitive damages claim, but *Taylor*

expressly holds that they are not essential prerequisites. (*Taylor*, supra, 24 Cal.3d at p. 896.) Nor must plaintiffs allege the precise driving maneuvers involved in earlier decisions. Although *Busboom v. Superior Court* (1980) 113 Cal.App.3d 550 involved wrong-way driving, its analysis also emphasizes the amended allegations that the driver knew of the danger he created and deliberately failed to avoid it. (Id. at pp. 552–553, 555.) Here, the complaint expressly alleges knowledge of intoxication and a voluntary decision to drive, together with the surrounding circumstances supporting the claimed conscious disregard.

Defendants also rely on *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 89–90, which distinguishes foreseeable injury from probable injury and explains that intoxication or traffic violations, without more, do not establish malice. The Court applies that distinction. *Dawes* does not, however, make its particular combination of extreme speed, weaving through traffic, and a crowded recreation area the minimum factual showing in every case. The allegations here must be evaluated together under section 3294 and *Taylor*.

The Court does not adopt plaintiffs’ characterization of every alleged circumstance as independently establishing malice. Driving “at or above” a posted 40-mile-per-hour limit does not necessarily allege extreme speeding. The collision’s severity and the photographs do not independently establish Viramontes’s state of mind. Nor does the alleged DUI guilty plea conclusively establish malice under section 3294. These limitations do not defeat the reasonable inferences arising from the complaint as a whole.

Defendants separately request removal of all references to intoxication from the second cause of action. Those allegations are relevant to plaintiffs’ negligence and negligence per se theories, including the alleged violations of Vehicle Code section 23152, subdivisions (a) and (b). Defendants identify no basis for striking them as irrelevant or improper, regardless of whether punitive damages ultimately are recoverable.

The Court construes the punitive damages request as directed solely against Viramontes, the defendant expressly identified in paragraph EX-1 of the exemplary damages attachment. This ruling does not authorize a punitive damages claim against Florisa Fernandez.

Judicial notice of the criminal case summary and map attached as exhibits C and D to the Gomez declaration is denied as unnecessary to resolution of this motion. The Court’s determination rests on the existing complaint, including its attached photographs, and does not

		depend on additional factual assertions or anticipated discovery described in counsel's declaration. Defendants shall give notice.
5.	2024-1391396 Marshall vs. Volkswagen Group of America, Inc.	Plaintiff Krystian Marshall's motion for attorney's fees is granted in part. <u>Fees</u> The Court begins with the lodestar: the number of hours reasonably expended multiplied by a reasonable hourly rate. The reasonable rate is the prevailing community rate for comparable work. (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) In determining a reasonable hourly rate, the Court may consider its knowledge of the local legal market, counsel's experience, skill, and reputation, the difficulty of the work performed, and evidence of prevailing rates and awards in comparable cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41; <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) In <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, a Song-Beverly action arising out of Orange County, the court noted that a \$650 hourly rate was "not an extraordinary, high hourly fee" and, rather, was a fee "we see somewhat routinely." (Id. at p. 350.) Similarly, in <i>Goglin v. BMW of North America, LLC</i> (2016) 4 Cal.App.5th 462, a Song-Beverly action arising out of San Diego, the court found the hourly rate of \$575 to be reasonable. (Id. at pp. 473-474.) In <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1158, the court discussed a request using Orange County hourly rates of \$415 to \$500 and required proper application of the lodestar method. Thereafter, "Civil Code section 1794 'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.'" (<i>Morris</i>, supra, 41 Cal.App.5th at p. 34 [internal quotation marks and citations omitted].) "A prevailing buyer has the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (<i>Ibid.</i> [cleaned up internal quotations].) The Court considers whether the case was overstaffed and whether the time spent on particular tasks was reasonable. Inefficient, duplicative, or excessive work need not be compensated. (<i>Morris</i>, supra, 41 Cal.App.5th at p. 38.)

“[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.)

In support of the hourly rates claimed by each attorney who worked on this matter, Plaintiff’s counsel includes what seems to be a running tally of cases up to and including March 2026 (this motion was filed 3/26/26), where Plaintiff’s counsel received favorable attorney’s fees and rates. (See, exs. 1-31.) The billing records pertaining to this case were not addressed until ex. 34 (184 pages into the Plaintiff’s provided evidence).

Plaintiff requests rates which vary by attorney experience (9 different attorneys in total) and billing year. The attorneys who performed the majority of the work on this case were:

1. D. Mahnke, senior associate, 18.2 hrs. billed at \$400-\$425/hr. for 36.84% (Mtn, p. 10:5; Jacobson Decl., ¶¶ 40-41);
2. S. Hovahnnisyan, associate, 6.6 hrs. billed at \$395/hr. for 13.36% (Mtn., p. 10:8; Jacobson Decl., ¶¶ 44-45);
3. G. Sogoyan, partner, 5.5 hrs. at \$525/hr. for 11.13% (Mtn., p. 10:9; Jacobson Decl., ¶¶ 46-47); and
4. A. Jung, senior associate, 5.5 hrs. billed at \$400/hr., for 11.13% (Mtn., p. 10:11; Jacobson Decl., ¶¶ 50-51).

Combined, these four attorneys accounted for 72.46% of the work performed in this case. Based upon the foregoing and based upon the Court’s previous experiences with Lemon Law rates in Orange County, the Court finds a blended hourly rate of \$400/hr. to be reasonable for the attorneys who billed in this matter.

Plaintiff seeks compensation for 49.4 hours of attorney time. Plaintiff also requests an additional \$4,000 for reviewing the opposition, preparing the reply, and attending the hearing.

Defendant does not challenge the hours billed, other than to generally argue that the time spent was unreasonable.

The Court finds the 6.6 hours claimed for preparing this largely standardized fee motion excessive. Two hours reasonably compensates that work. The Court therefore reduces the compensable time by 4.6 hours.

The Court therefore reduces the compensable time to 44.8 hours (49.4 minus 4.6).

Based upon the blended rate of \$400/hour and the 44.8 recoverable hours, the recoverable attorney fees total \$17,920.

Multiplier

Lastly, Plaintiff requests a 1.25 multiplier. As explained by the Court in *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, a lodestar figure may be “augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (*Id.* at p. 819.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Ibid.*)

Applying a multiplier is discretionary. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248.) “Of course, the trial court is not *required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) “In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*.” (*Ibid.*)

“[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Ketchum*, *supra*, 24 Cal.4th at p. 1139.)

Additionally, while the case was handled on a contingent fee basis, the one-sided mandatory statutory fee award reduced the risk otherwise inherent in a contingent fee case. (See *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [discussing FEHA fees award].)

The Court denies Plaintiff’s request for a multiplier, as the case did not involve any novel or difficult legal or factual issues. This was a

		simple lemon law action, which did not require any complex litigation. <u>Conclusion</u> Plaintiff is awarded total attorney fees of: \$17,920. Moving Party to give notice.
8.	2024-1432624 Hana Korean BBQ, LLC vs. Tenet Sac Holdings, LLC	Defendants' motion for judgment on the pleadings is granted as to the second cause of action for negligence, with 30 days' leave to amend, and otherwise denied. Defendant Tenet Sac Holdings, LLC's motion for leave to file a cross-complaint is granted. <u>Motion for judgment on the pleadings</u> A motion for judgment on the pleadings tests the legal sufficiency of the challenged pleading. The Court accepts properly pleaded material facts and reasonable inferences, but not conclusions of law. The complaint is read as a whole, including its attached exhibits. The grounds for the motion must appear on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., § 438, subds. (c)–(d).) The motion challenges the first cause of action against Tenet, the second cause of action against all defendants, and the third and fourth causes of action against Vierergruppe Management and Continuum Analytics. It does not challenge the third or fourth cause of action against Tenet. <u>First cause of action – breach of contract</u> The motion is denied. Hana attaches the lease and alleges Tenet assumed the landlord's obligations. It identifies failures to maintain the property and to provide annual statements and reconciliation of common area maintenance charges. (Complaint, ¶¶ 10–17, 20–22.) These allegations identify contractual duties and asserted breaches sufficiently to withstand this motion. In particular, section 13.6(b) requires an annual statement of actual common area expenses and a reconciliation of the tenant's estimated payments. The lease's notice-and-cure provisions are material. Section 12.1 conditions liability for specified repairs on written notice and a reasonable opportunity to perform them. Section 19.4 requires written notice of a landlord default and an opportunity to cure. Section 27.30 also addresses notice and an opportunity to cure before the tenant pursues a separate action.

Hana alleges that it performed all, or substantially all, of its obligations or was excused from performance. (Complaint, ¶ 25.) Code of Civil Procedure section 457 permits performance of contractual conditions precedent to be pleaded generally. Read together with the allegations of repeated repair requests and demands for compliance, paragraph 25 sufficiently alleges performance at this stage. The complaint does not affirmatively disclose a failure to satisfy the applicable conditions. Whether Hana can prove contractually sufficient notice and expiration of the required cure periods remains to be determined.

Defendants also challenge the implied-covenant allegations concerning preferential treatment of other tenants. The implied covenant cannot create contractual rights inconsistent with the lease. But even if particular allegations concerning other tenants do not establish a breach, that does not defeat the entire cause of action, which also rests on identified maintenance and CAM obligations.

Likewise, the lease's restrictions on lost profits and consequential damages do not dispose of the entire contract claim. Hana also alleges charges for expenses not actually incurred and a failure to provide the required reconciliation. Denial of this motion does not determine which categories of damages Hana may ultimately recover.

Second cause of action – negligence

The motion is granted with leave to amend.

Hana alleges unsafe conditions, including inoperable elevators and escalators, mold in a stairwell, and an uncovered electrical transformer. Landlords and property managers may owe duties concerning unsafe premises independent of a lease. The existence of such duties, however, does not itself establish a right to recover every financial loss associated with their breach.

The damages alleged in paragraph 32 consist of rent paid for deficient services and conditions, accommodation expenses, lost profits, and damage to Hana's business. The complaint does not allege bodily injury or physical damage to Hana's property. The elevator incident involving another tenant does not supply such an injury to Hana.

California generally does not permit recovery in negligence for purely economic losses absent a recognized exception. Where contracting parties seek the economic benefits of their agreement, negligence ordinarily cannot substitute for their contract remedies. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922–923.)

Hana's allegations against Tenet seek compensation for the financial consequences of deficient performance of the lease's maintenance and management obligations. References to safety requirements and foreseeable business losses do not, without more, establish an independent basis for recovering those losses in negligence.

The management defendants are not parties to the lease. Their potential liability for Hana's economic losses therefore requires separate consideration. A special relationship may support recovery where the plaintiff was an intended beneficiary of a particular transaction or undertaking and was harmed by the defendant's negligent performance. (*Southern California Gas Leak Cases* (2019) 7 Cal.5th 391, 400–401.) In *J'Aire Corp. v. Gregory* (1979) 24 Cal.3d 799, 804–805, a contractor hired by a landlord to renovate a restaurant's premises owed a duty to the restaurant operator to avoid unnecessary business losses from delay. The relevant considerations include the extent to which the undertaking was intended to affect the plaintiff, foreseeability, certainty of injury, the connection between the conduct and injury, moral blame, and prevention of future harm.

The Court has considered Hana's allegations that the management defendants participated in the challenged conduct, knew of the conditions, could correct them, and received or deleted repair requests concerning conditions impairing Hana's operations. (Complaint, ¶¶ 5, 13–14, 18.) Those allegations support foreseeability and a connection between the alleged conduct and Hana's losses. The alleged disregard of repeated requests also bears on blameworthiness. Nevertheless, the complaint does not sufficiently describe the scope of either manager's undertaking or facts showing that Hana was an intended beneficiary of that undertaking in the sense contemplated by *J'Aire*. Paragraph 28's assertion of a duty to manage and repair the property consistently with the lease and applicable law does not supply those missing facts. General management responsibilities and knowledge that deficient maintenance will harm a tenant's business do not, without more, establish a duty to protect that tenant against purely economic loss.

This conclusion does not require Hana to allege a direct contract with either manager, nor does it categorically exclude property-management or repair undertakings from the special-relationship exception. The deficiency concerns the facts identifying the undertaking and its intended connection to Hana.

Hana's reliance on *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057 does not resolve that deficiency. The tenants there alleged physical injuries from mold exposure and contamination of their inventory and belongings. Hana alleges no comparable injury. Recognition that a property manager may owe duties concerning dangerous conditions does not itself establish a right to recover the purely economic losses pleaded here.

Leave to amend is appropriate where there is a reasonable possibility that amendment can cure the identified defects. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court finds such a possibility here. Further allegations concerning the nature of Hana's injury or the scope and intended beneficiaries of the management defendants' undertakings may supply a basis for recovery in negligence. Hana may amend to allege those facts, if supported, including facts identifying the undertaking and conduct attributable to each management defendant.

Third cause of action – private nuisance

The motion is denied as to Vierergruppe and Continuum.

The complaint alleges more than the management defendants' status as agents. Paragraph 5 alleges their participation in the challenged conduct, their knowledge and approval of it, and their ability to correct the conditions. The incorporated allegations identify persistent access obstructions and unsafe conditions, repeated repair requests, and deletion of electronic repair requests by Tenet or its management companies. Paragraph 34 alleges that defendants created or permitted the continuing conditions and thereby interfered with Hana's use of the premises.

Read together, these allegations sufficiently connect the management defendants to the asserted interference with Hana's possessory interest. They allege substantial interference with access to and use of the leased premises, including knowing continuation of the conditions after requests for correction. (Civ. Code, § 3479.)

An agent may be liable for its own wrongful conduct. (Civ. Code, § 2343, subd. 3.) The lease's reservation of control over common areas to the landlord does not establish that the landlord's alleged managing agents lacked authority to act on its behalf or did not participate in the conduct alleged.

The ruling on negligence does not require a different result. This cause of action alleges knowing interference with Hana's use and enjoyment of its leased property, rather than merely negligent infliction of business losses. The motion's contention that the

complaint fails to connect Vierergruppe and Continuum to that interference is not persuasive.

Fourth cause of action – accounting

The motion is denied as to Vierergruppe and Continuum.

An accounting requires a relationship warranting an accounting and a balance due to the plaintiff that can be determined only through an accounting. A fiduciary relationship is not indispensable. The right may arise from a defendant's possession of money or property that, because of the parties' relationship, the defendant is obliged to surrender. (*Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179–180.)

Paragraph 37 alleges that defendants, and each of them, collected or used Hana's rent and CAM payments and possess the information necessary to determine the sums properly charged and the funds that should be returned. Paragraph 38 alleges, based on information from repairpersons and otherwise, that it appears defendants did not use the collected amounts for their required purposes and that an unknown portion "appears likely" to have been converted and pocketed by defendants. These allegations must be read together with the allegations of joint participation and charges for expenses not actually incurred. (Complaint, ¶¶ 5, 8, 17, 37–38.)

Although paragraph 38 uses qualified language, the Court liberally construes these allegations as asserting that the management defendants themselves wrongfully retained an unknown portion of payments that should be returned to Hana. On that construction, the complaint sufficiently alleges a relationship requiring an accounting and a balance due that cannot presently be determined without one. The conclusion rests on the allegations of wrongful retention, not merely on the managers' agency status, their collection of rent for Tenet, or their possession of accounting records. Those circumstances alone would not establish that either manager owes Hana a balance.

The Court does not equate unpaid repair invoices with improper CAM charges. Section 13.5 permits various incurred expenses, management charges, and reserves. Those provisions will bear on whether any charge or retention was improper. They do not conclusively defeat the allegations of charges for nonexistent expenses and diversion of funds.

Hana shall have 30 days after service of notice of this ruling to file and serve an amended complaint addressing the defects in the second cause of action. (Code Civ. Proc., § 438, subd. (h)(2).)

Motion for leave to file cross-complaint

The motion is granted.

Tenet seeks to assert claims against Hana arising from alleged nonpayment of rent and related charges beginning in December 2025. Tenet served its answer before those alleged defaults arose. Accordingly, the proposed claims were not compulsory cross-claims that Tenet omitted when answering. The mandatory relief provisions of Code of Civil Procedure section 426.50 do not govern. (*Crocker National Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.)

Under Code of Civil Procedure section 428.50, subdivision (c), the Court may grant leave in the interest of justice. The Court exercises that discretion in favor of permitting the proposed cross-complaint.

The proposed pleading concerns the same lease, rent obligations, CAM charges, and disputed allocation of contractual responsibilities already at issue. It adds no new parties. Although it asserts affirmative claims for rent and related relief, the substantial factual and contractual overlap favors resolving the parties' competing claims in this action.

The Court has considered Hana's objections concerning delay and the supporting declaration. New counsel's substitution does not erase the period during which Tenet already knew of any unpaid rent. Brandon Q. Tran's declaration could have identified more precisely when Tenet first learned of the facts supporting its claims. It nevertheless identifies the alleged defaults, counsel's substitution in February 2026, the ensuing review, the May 6, 2026 default notice, and the reasons for seeking leave. The proposed pleading identifies the claims and their effect on the action.

Even treating Tenet as aware of the alleged default beginning in December 2025, the interval before its June 1, 2026 motion does not warrant denial in the circumstances presented. The claims concern later events in an existing contractual relationship, and their resolution substantially overlaps the pending dispute.

The Court also considers the additional preparation and discovery the cross-complaint may require. Trial is currently set for December 14, 2026. Hana's generalized assertions that discovery must begin anew do not establish prejudice sufficient to outweigh the benefits of resolving these related claims together. The proposed pleading principally concerns the lease, payment history, CAM charges, notice, and the parties' communications.

This ruling does not establish that Hana defaulted, that the amount demanded is correct, or that the lease's restrictions on offsets are

		enforceable as applied. Those issues remain subject to Hana’s response and adjudication on the merits. The proposed cross-complaint reserves a possible separate unlawful detainer proceeding; this order does not grant possession or adjudicate any such proceeding. Tenet shall file and serve the proposed cross-complaint attached as Exhibit A to the Tran declaration, including its referenced exhibits, within 10 days after service of notice of this ruling. The parties shall promptly meet and confer concerning any discovery specifically required by the cross-complaint. This ruling does not itself reopen discovery or modify the trial date. Any necessary request for relief from existing discovery deadlines shall be presented under Code of Civil Procedure section 2024.050. Defendants shall give notice.
9.	2025-1495388 Sirott vs. Giammichele Law, APC	Case Management Conference Defendants Tustin Law Group, APC, formerly known as Giammichele Law, APC, and Steven Andrew Giammichele (collectively, “Defendants”) demur to the legal malpractice claims alleged in the First Amended Complaint (“FAC”) by Plaintiff Adrienne Sirott (“Plaintiff”), individually and as personal representative of the Estate of Stanley A. Sirott. The demurrer is overruled. <u>Judicial notice and standard of review</u> Defendants’ request for judicial notice is granted as to the issuance of letters testamentary to Plaintiff on April 14, 2025. The remaining requests concerning related proceedings are denied as unnecessary to resolution of the demurrer. The existence of those proceedings does not establish the truth of disputed factual assertions made in them. (Evid. Code, § 452, subd. (d); <i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659–660.) A demurrer tests the sufficiency of the pleading. The Court accepts properly pleaded material facts and reasonable inferences from those facts, but not conclusions of law. The FAC must be read reasonably and as a whole. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) <u>Plaintiff’s individual claim</u> An estate-planning attorney’s duty to a nonclient beneficiary is limited. The client’s intent to benefit that person in the manner asserted must be clear, certain, and undisputed. Merely alleging

that the plaintiff was a beneficiary does not establish a duty to obtain every additional benefit the plaintiff claims should have been provided. (*Grossman v. Wakeman* (2024) 104 Cal.App.5th 1012, 1022–1024; *Gordon v. Ervin Cohen & Jessup LLP* (2023) 88 Cal.App.5th 543, 556–560.)

The FAC alleges more than a general intention to benefit Plaintiff. It alleges that Defendants prepared a Second Amendment allocating 75 percent of the Trust residue to Plaintiff and 25 percent to Patrick Roldan at Stanley’s direction, and that Stanley signed the amendment. It further alleges that Defendants attempted to implement that direction through a power of attorney that did not authorize the affected changes, despite knowing of that limitation. (FAC, ¶¶ 17–19.)

These allegations identify both the intended beneficiary and the particular intended benefit. The alleged error concerns the legal means used to implement an expressed disposition. An attorney’s duty to an intended beneficiary may encompass competent advice and preparation necessary to avoid a legal impediment to the specified gift. (*Osornio v. Weingarten* (2004) 124 Cal.App.4th 304, 334–335.) The allegation that the amendment accurately stated the intended percentages does not, by itself, defeat a claim that Defendants negligently prepared an instrument incapable of accomplishing that disposition.

Defendants correctly observe that Stanley’s intent cannot supply authority he lacked over Dolores’s property. Nor could Defendants owe Plaintiff a duty to override Dolores’s wishes or obtain a disposition their clients had not authorized. But those limitations do not establish that the FAC alleges no actionable duty. The FAC does not allege that Stanley knowingly directed Defendants to use an ineffective power of attorney. It alleges that Defendants undertook to implement his expressed instructions and negligently selected or employed the means of doing so. The existence of a probate dispute does not itself establish that those instructions were uncertain.

Plaintiff also alleges negligent tax planning. The FAC identifies provisions affecting the estate-tax marital deduction and the charitable deduction for the Tiffany collection, alleges Stanley’s intended tax treatment, and alleges resulting injury to Plaintiff as a residuary beneficiary. (FAC, ¶¶ 14–17, 22.) Contrary to Defendants’ characterization, the opposition expressly advances these allegations as a basis for Plaintiff’s individual claim.

In *Bucquet v. Livingston* (1976) 57 Cal.App.3d 914, 923–925, the court recognized a beneficiary’s malpractice claim based on drafting errors that frustrated an intended tax-saving arrangement and

	reduced the property passing to the beneficiaries. The FAC alleges that type of injury. Defendants’ arguments concerning the attempted increase from 50 percent to 75 percent do not dispose of the tax allegations. The causation challenge also does not warrant sustaining the demurrer. Plaintiff must establish that, but for Defendants’ negligence, she would have obtained a more favorable result. Foreseeability alone is insufficient. (<i>Viner v. Sweet</i> (2003) 30 Cal.4th 1232, 1241–1244.) The FAC alleges specific drafting and advice failures, resulting impairment of the intended gifts, and litigation expenses incurred because of those failures. (FAC, ¶¶ 18–23, 28.) Expenses incurred to address the consequences of an attorney’s negligence may constitute compensable injury. (<i>Budd v. Nixen</i> (1971) 6 Cal.3d 195, 202.) The Court does not determine on this demurrer that Plaintiff was irrevocably entitled to 75 percent of all Trust assets. Dolores’s continuing rights and any valid subsequent amendment may affect causation and the extent of recoverable damages. Plaintiff’s opposition also describes a particular alternative allocation that is not expressly set out in the FAC; the Court does not adopt that explanation as an established fact. Nevertheless, the FAC sufficiently alleges that identified errors caused actual litigation expenses and impaired the intended disposition and tax treatment. Defendants’ assertions concerning later acts by Roldan do not conclusively defeat those allegations. The demurrer to Plaintiff’s individual claim is overruled. <u>Plaintiff’s claim as personal representative</u> <i>Limitations and representative capacity</i> Code of Civil Procedure section 340.6 generally provides a one-year period following actual or constructive discovery of the facts constituting the alleged malpractice, or four years following the wrongful act or omission, whichever occurs first, subject to the statutory tolling provisions. A limitations defense supports a demurrer only when the bar clearly and affirmatively appears from the pleading or judicially noticeable matters. (<i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403.) Defendants contend that the one-year limitations period began no later than Stanley’s death on August 2, 2023, and expired before Plaintiff obtained letters testamentary on April 14, 2025. Even assuming Defendants’ proposed commencement date, the original complaint was filed within that period, on June 13, 2024. Their argument therefore turns on whether Plaintiff’s subsequent
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appointment and amended pleading cured her original lack of representative authority with relation-back effect. The Court need not determine the precise accrual or discovery date to reject the categorical contention that the timing of the appointment necessarily bars the claim. (Prob. Code, § 8400, subd. (a).)

A defect in the original plaintiff's authority does not invariably prevent an amended pleading from relating back. An amendment substituting the proper representative may relate back when it preserves the underlying claim rather than introducing a different factual basis for liability. (*Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–22.)

Defendants rely on *Coats v. K-Mart Corp.* (1989) 215 Cal.App.3d 961, 967–968. However, *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 1008–1011, distinguished *Coats*, including its repeated misrepresentations concerning representative status, prolonged failure to obtain appointment despite court orders, and absence of a motion to amend to substitute the duly appointed representative. *Cloud* rejected a categorical reading of *Coats* inconsistent with *Klopstock*'s liberal amendment rule. The relevant inquiry concerns relation back of an amended pleading, not automatic retroactive effect of an appointment.

Here, the FAC alleges Plaintiff's appointment as executor. Defendants themselves describe the original complaint as asserting a claim on behalf of the estate, and they identify no change in the underlying estate claim that would introduce a different factual basis for liability. Nor do they identify circumstances comparable to the prolonged misrepresentations and procedural history discussed in *Cloud*. Plaintiff's lack of authority when the original complaint was filed does not, without more, establish that the defect could not be cured through the amended pleading.

Defendants also rely on *Wheeler v. City of Santa Clara* (9th Cir. 2018) 894 F.3d 1046 and *MacEachern v. City of Manhattan Beach* (C.D.Cal. 2009) 623 F.Supp.2d 1092, 1101–1102. *Wheeler* rejected a proposed substitution after the limitations period where no personal representative had been appointed when the action was dismissed. Here, Plaintiff has obtained appointment and filed an amended complaint alleging that status. To the extent those federal decisions suggest that an original lack of representative authority invariably precludes relation back, the Court follows the California rule articulated in *Klopstock* and explained in *Cloud*. Defendants have not established a limitations bar on the grounds advanced.

This conclusion does not depend on treating the absence of an appointed representative as a ground for tolling. Nor does the

pendency of related litigation itself toll section 340.6. The demurrer on limitations grounds is overruled.

Injury to the estate

Plaintiff's appointment permits her to pursue claims belonging to the estate; it does not permit her to recover, in that capacity, losses belonging solely to herself or to other beneficiaries. A failed bequest ordinarily injures the intended beneficiary rather than the estate. (*Bucquet v. Livingston*, supra, 57 Cal.App.3d at p. 925.)

Defendants also correctly identify the statutory limitation on damages recovered on a decedent's surviving cause of action: those damages generally are limited to loss or damage sustained or incurred before death. (Code Civ. Proc., § 377.34, subd. (a); *People v. Runyan* (2012) 54 Cal.4th 849, 861–862.) Plaintiff cannot avoid that limitation merely by labeling a beneficiary's postdeath loss an estate loss.

The limitation on damages in a surviving cause of action does not resolve every malpractice claim arising upon a client's death. In *Granquist v. Sandberg* (1990) 219 Cal.App.3d 181, 185–187, the attorney allegedly failed to obtain trial preference before the client died, thereby causing the loss of recoverable damages in the underlying action. The court distinguished that underlying action from the malpractice claim, which first arose upon death, and permitted the personal representative to pursue the latter. In explaining that distinction, the court expressly analogized the claim to an action arising upon death from a failure to prepare a will. (Id. at p. 185.)

The Court applies that reasoning here by analogy; *Granquist* did not decide an estate-planning claim or establish that all losses resulting from defective estate planning belong to the estate. Likewise, *Runyan's* discussion of civil survival principles remains relevant: Plaintiff cannot recover postdeath losses on the theory that Stanley personally continued to sustain damage after death. The claim alleged here, however, is that negligent estate planning caused an injury to the estate itself when the plan took effect. *Runyan* did not decide whether a personal representative could maintain such a malpractice claim.

Paragraph 21 expressly alleges that the Estate of Stanley A. Sirott sustained litigation expenses and tax liability as a result of Defendants' negligent services. Paragraph 28 also alleges losses suffered by Plaintiff in her representative capacity. Read together with the particular drafting and advice failures alleged in paragraphs 14 through 19, these allegations assert injury to the estate itself. For purposes of this demurrer, the Court accepts the

		pleaded estate expenses and liability; it does not infer estate injury merely from an impaired gift or from the use of the term “estate tax.” The ultimate allocation of particular taxes and expenses among the estate, the Trust, and individual beneficiaries remains to be established. Plaintiff must prove an injury belonging to the estate to recover in her representative capacity, and the same loss may not be recovered twice. The FAC’s allegations of estate injury are sufficient to withstand the grounds advanced in this demurrer. The demurrer to Plaintiff’s claim as personal representative is overruled. Defendants shall file and serve an answer within 10 days after service of notice of this ruling. Plaintiff shall give notice.
10.	2025-1498552 Villa vs. Coastal Capital Group LLC	Case Management Conference Defendant Brian Ballo’s Motion to Quash Service of Summons and First Amended Complaint is granted. Defendant Alexander Ballo’s Motion to Quash Service of Summons and First Amended Complaint is granted. Defendant Sapphire Escrow’s Motion to Quash Service of Summons and First Amended Complaint is granted. <u>Legal Standard</u> “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) “[N]o act by a party who makes a motion under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section.” (Code Civ. Proc., § 418.10, subd. (e)(1); <i>Roy v. Superior Court</i> (2005) 127 Cal.App.4th 337, 345 [“Nothing could be clearer: a defendant may move to quash coupled with any other action without being deemed to have submitted to the court’s jurisdiction”] [emphasis in original].) When service of process is challenged by a motion to quash, plaintiff bears the burden of proving the facts necessary to establish valid

service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413; *Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.) The Court resolves factual disputes concerning service by weighing the evidence presented.

Defendant Brian Ballo

Plaintiff filed a proof of service of summons claiming personal service of the summons and complaint on Brian Ballo on 2/12/26, at 5:05 PM, at 120 Vantis, Ste. 300, Aliso Viejo, by Raina Thorson (not a registered process server). (ROA 47.) Defendant contends the purported service should be quashed, because “the Proof of Service is *falsely signed under penalty of perjury by Raina Thorson.*” (ROA 53 [Mot. at p. 1, emphasis in original].) Specifically, Defendant contends that he was in Incline Village, Nevada, on the purported date and time of service, so he could not have been personally served with process on 2/12/26 in Aliso Viejo. (ROA 53 [Mot. at p. 2].) In addition to his sworn declaration, Brian Ballo proffers a confirmation of his Hyatt hotel reservation, a receipt for his Southwest Airlines flights, and a receipt from his Hertz car rental. (Brian Ballo Decl. at ¶¶ 2-6, Exhs. A-C.) The documents tend to support his argument.

The Court has considered the proof of service and defendant’s declaration and supporting documents. The Court credits defendant’s evidence that he was elsewhere at the stated time and finds that the asserted personal service did not occur. Plaintiff did not oppose the motion or submit additional evidence resolving that conflict. Plaintiff has not carried her burden of establishing valid service. The motion to quash service of the summons and first amended complaint is granted.

Defendant Alexander Ballo

Plaintiff filed a proof of service of summons claiming personal service of the summons and complaint on Alexander Ballo on 2/12/26, at 5:05 PM, at 120 Vantis, Ste. 300, Aliso Viejo, by Raina Thorson (not a registered process server). (ROA 48.) Defendant contends the purported service should be quashed, because the “the Proof of Service is *falsely signed under penalty of perjury by Raina Thorson.*” (ROA 54 [Mot. at p. 1, emphasis in original].) Specifically, Defendant contends that he was ice skating at Anaheim Ice in Anaheim at that time. (ROA 54 [Mot. at p. 2].) In addition to the sworn statements in his declaration, Alexander Ballo proffers a posting of the schedule for Anaheim Ice on 2/12/26, and a photo of him and his girlfriend taken while ice skating. Alexander Ballo also attests that he is a licensed process server and that he took and passed his exam on the morning of 2/12/26. (Alexander Ballo Decl. at ¶¶ 2-7, Exhs. A-D.) The documents tend to support his argument.

Although there is a rebuttable presumption that service was proper, the Court finds Defendant has rebutted that presumption. Moreover, Plaintiff did not oppose the motion or submit any evidence from the (unregistered) process server, Raina Thorson, to support the proof of service. As such, Plaintiff did not meet her burden of proving “the facts requisite to an effective service.” The motion to quash the service of the summons and FAC is granted.

Defendant Sapphire Escrow

On 3/4/26, Plaintiff filed a proof of service of summons reflecting personal service of summons, on Escrow, on 2/23/26 at “12:01” at 17100 Pioneer Blvd., Ste. 110, in Artesia, by “Blanca E. Olimón” (who is not a registered process server). (ROA 50.) Defendant moves to quash the service of summons on the grounds that the proof of service “fails to identify any individual by name who accepted service on behalf of Sapphire Escrow, nor does it establish that the unidentified person was authorized to accept service in any capacity recognized by statute” and “fails to state the person’s title or the capacity in which the person is served.” (ROA 72 [Mot. at p. 2].) Defendant’s arguments have merit.

Plaintiff does not dispute that Defendant is a business entity, and that it was identified as such in the proof of service. Service on business entities is generally accomplished through service on the person designated as agent for service of process, or a person who serves as a manager or officer. (See Code Civ. Proc., §§ 416.10 [service on corporations]; 416.40 [service on unincorporated associations].) The proof of service must “recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, the person’s title or the capacity in which the person is served...” (Code Civ. Proc., § 417.10, subd. (a).) The proof of service for Sapphire Escrow does not comply with CCP section 417.10 because, despite the instruction to “specify name and relationship to the party” when the person is “served on behalf of an entity,” the proof only states that “Sapphire Escrow” was served. It does not indicate the name of the person to whom the summons was purportedly delivered, or that person’s title or capacity under which he or she was qualified to accept service.

The proof of service does not establish delivery to a person authorized to accept service for Sapphire Escrow. Plaintiff did not oppose the motion or submit additional evidence establishing valid service. Sapphire Escrow’s motion to quash service of the summons and first amended complaint is granted.

Defendant Sapphire Escrow shall give notice of the rulings.

Motion for Vexatious Litigant Designation and Bond Requirement
Defendant Alexander Ballo’s (“Defendant”) Motion For Orders Designating Plaintiff Elizabeth Villa (“Plaintiff”) a “Vexatious Litigant” and Requiring Plaintiff to Post a \$25,000 Bond is denied.

Defendant’s request for judicial notice is granted. (Evid. Code, § 452, subd. (d).)

Defendant contends Plaintiff is a vexatious litigant as defined by CCP section 391, subdivision (b)(3), because she has “brought a series of Motions in both this [case, the] Wrongful Foreclosure Case, the Unlawful Detainer Case, the Civil Harassment Case I and Civil Harassment Case II, all for the ulterior purpose of delaying her eviction from 26582 San Torini Rd., Mission Viejo, CA 92692.” (Mot. at pp. 5-6.)

“The vexatious litigant statutes (§§ 391–391.7) are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly litigating the same issues through groundless actions, waste the time and resources of the court system and other litigants.” (*Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169.) As relevant here, Code of Civil Procedure section 391(b)(3) concerns a self-represented litigant who repeatedly files unmeritorious papers, conducts unnecessary discovery, or employs frivolous tactics or tactics solely intended to cause unnecessary delay. “Litigation” includes any civil action or proceeding commenced, maintained, or pending in a state or federal court. (Code Civ. Proc., § 391, subds. (a), (b)(3).)

“When considering a motion to declare a litigant vexatious, the court must weigh the evidence to decide whether the litigant is vexatious based on the statutory criteria and whether the litigant has a reasonable probability of prevailing.” (*Goodrich v. Sierra Vista Regional Medical Center* (2016) 246 Cal.App.4th 1260, 1265.) Evidence that a litigant is a frequent plaintiff or defendant alone is insufficient to support a vexatious litigant designation. (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 969.)

The Court has reviewed the records of the unlawful detainer and civil harassment proceedings. Although plaintiff did not prevail in those proceedings, the records do not establish repeated unmeritorious filings, unnecessary discovery, or tactics that were frivolous or solely intended to cause unnecessary delay. The adverse outcomes alone do not establish that plaintiff is a vexatious litigant under section 391(b)(3).

In this case, Plaintiff has filed an unsuccessful ex parte application for “immediate relief due to illegal lockout, utility shutoff and

	harassment” (ROA 7), and an “ex parte” reconsideration of the order denying the ex parte (ROA 16). The Court denied the first application “WITHOUT PREJUDICE” because Plaintiff failed to comply with the “notice provisions of the California Rules of Court.” (ROA 10.) The Court denied the second application “for reconsideration,” because it was “presently non-justiciable,” as “Plaintiff’s remedy lies in contesting the very pending unlawful detainer proceedings which the evidence suggests is imminent.” (ROA 21.) Considering the identified filings and their circumstances together, the Court finds that defendant has not established the pattern of conduct required by section 391(b)(3). The motion is denied. Moving defendant shall give notice of the ruling.
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